

2016 PSC CrI. 213, 2016 PLD Supreme Court 171

Malik NAZIR AHMED vs Syed SHAMAS-UL-ABBAS and others

CITATION

2016 PSC CrI. 213, 2016 PLD Supreme Court 171

CASE NO.

Criminal Petition No.348-L of 2015 Criminal
Miscellaneous No.517-B of 2015

JUDGE(S)

Asif Saeed Khan Khosa, Manzoor Ahmad Malik

COURT

Supreme Court of Pakistan

DATE

2015-12-22

RESULT

Case remanded

AI SUMMARY — generated from this judgment; read the full text below and verify before relying on it.

This petition for leave to appeal was filed by the complainant against an order of the Lahore High Court granting pre-arrest bail to respondent No. 1 in a case registered under section 489-F of the Pakistan Penal Code 1860. The core legal question was whether pre-arrest bail can be granted as a general rule merely because no recovery is to be effected from the accused. The Supreme Court held that the High Court's view—that an accused cannot be refused pre-arrest bail if no recovery is required—militates against the scheme of the Code of Criminal Procedure 1898, as arrest during investigation is also meant for investigating circumstances and collecting evidence. The Court laid down the principle that investigation is not solely for effecting recovery, and physical custody may be required for ascertaining circumstances or verifying defenses. Consequently, the appeal was allowed, the impugned order was set aside, and the matter was remanded to the High Court for a fresh decision on merits.

QUESTIONS SETTLED IN THIS JUDGMENT

- Whether pre-arrest bail can be granted solely on the ground that no recovery is to be effected from the accused?
- Is the arrest of an accused person during the investigation of a criminal case meant exclusively for effecting recovery?
- Does the absence of a requirement for recovery preclude the refusal of pre-arrest bail in serious criminal offences?

LAWS & PROVISIONS REFERRED

- Section 489-F, Pakistan Penal Code 1860

[pre-arrest bail](#)

[bail cancellation](#)

[criminal investigation](#)

[recovery of evidence](#)

[dishonestly issuing a cheque](#)

ORDER

ASIF SAEED KHAN KHOSA, J.--Through this petition Malik Nazir Ahmed petitioner/complainant has sought leave to appeal against the order dated 18.03.2015 passed by a learned Judge-in-Chamber of the Lahore High Court, Bahawalpur Bench, Bahawalpur in Criminal Miscellaneous No. 517-B of 2015/BWP whereby respondent No. 1 namely Syed Shamas-ul-Abbas had been admitted to pre-arrest bail in case FIR No. 153 registered at Police Station Saddar Ahmedpur East, District Bahawalpur on 19.10.2014 in respect of an offence under section 489-F, P.P.C.

2. We have heard the learned counsel for the parties and have gone through the relevant record of the case with their assistance.

3. We note that respondent No. 1 had been admitted to pre-arrest bail by the learned Judge-in-Chamber of the High Court primarily upon the ground that an offence under section 489-F, P.P.C.

Did not entail any recovery to be affected from the accused person and if recovery is not to be affected from an accused person in a criminal case then he cannot to be refused pre-arrest bail in such case. While holding so the learned Judge-in-Chamber had referred to his own order passed in the case of Abdul Sattar v. The State and another ([PLD 2013 Lahore 173](#)) wherein similar views had earlier on been expressed in some other case. We have found the said approach adopted by the Hon'ble Judge to be militating against the scheme of the Code of Criminal Procedure because it had not been appreciated by the Hon'ble Judge that arrest of an accused person during the investigation of a criminal case is not meant only for effecting recovery from his possession but such arrest is made for the purposes of investigating the circumstances of the case and collecting evidence and recovery, where required, is only one of the components of the investigation. If the view held by the Hon'ble Judge of the High Court is allowed to hold the field then pre-arrest bail may not be refused to an accused person even in a case of rape or in a case of murder by throttling or even in a case of planning for terrorism where recovery may not be relevant and that surely was never the intention of the law. While investigating an offence physical custody of an accused person may be required by the investigating agency for ascertaining and verifying the circumstances being alleged by the complainant party and even for confirmation of the circumstances of the case put forth and

advanced by the accused person in his defence. It cannot, therefore, be said with any generalization that an investigation into a criminal offence is meant only for effecting a recovery from the accused person and in a case where no recovery needs to be effected such accused person cannot be arrested or cannot be refused bail. Such generalization by the Hon'ble Judge of the High Court has, therefore, been found by us to be not a proper generalization to receive approval of this Court. In this view of the matter the legal position declared by the Hon'ble Judge in the reported case of Abdul Sattar (supra) is disapproved. Apart from what has been observed above we note that the view held by the Hon'ble Judge of the High Court eliminates the consideration of mala fide on the part of the police or the complainant party which consideration is one of the prerequisites for pre-arrest bail in a case involving a non- bailable offence. This petition is consequently converted into an appeal and the same is allowed, the impugned order passed by the learned Judge-in-Chamber of the High Court on 18.03.2015 in Criminal Miscellaneous No.517-B of 2015/BWP is set aside, the matter is remanded to the Lahore High Court, Bahawalpur Bench, Bahawalpur for a fresh decision of Criminal Miscellaneous No. 517-B of 2015/BWP on the merits of the case and it is ordered that till a fresh decision of the said matter respondent No.1 shall remain on ad-interim pre-arrest bail in the relevant criminal case which may or may not be confirmed by the High Court depending upon the final decision of the matter on its merits. The petitioner and respondent No. 2 are directed to appear before the Lahore High Court, Bahawalpur Bench, Bahawalpur on 14.01.2016. If Mr.Justice Ibad-ur-Rehman Lodhi of the Lahore High Court, who had passed the impugned order in the present case, is not holding Court at the Bahawalpur Bench of the Lahore High Court on the said date then the matter may be fixed before and decided by any other Hon'ble Judge holding Court at that Bench on that date. The office is directed to send a copy of this order to Mr. Justice Ibad-ur-Rehman Lodhi of the Lahore High Court, Lahore for his information and guidance.

CITED BY 7 CASES

[Abdul Sattar vs The State and another](#)

2023 LHC 5667

[Muhammad Yaqoob vs The State](#)

2022 MLD 1065

Muhammad Yasir Mehmood vs Syed Sibte-e-Haider Zaidi and another

2022 YLR 1046

Faisal Sultan vs The State, etc

2021 IHC 168

Shaikh NOOR MUHAMMAD vs The STATE

2019 MLD 1692

Junaid Arshad vs The State & another

2017 LHC 3933

JUNAID ARSHAD vs The STATE and another

2018 P Cr. L J 739